

# Remuneration, Facilities and Other Conditions of Service of Chief Justice and Judges of Supreme Court Act, 2017

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Act Relating to Remuneration, Facilities and Other Conditions of Service of the Chief Justice and Judges of the Supreme Court, 2074 (2017)

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Amending Act

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Act Number 28 of the year 2074 (2017)

An Act Made to Provide for the Remuneration, Facilities and Other Conditions of Service of the Chief Justice and Judges of the Supreme Court

Preamble: Whereas, it is desirable to amend and consolidate the prevailing law relating to the remuneration, facilities and other conditions of service of the Chief Justice of Nepal and the Judges of the Supreme Court,

Now, therefore, the Legislature-Parliament, in accordance with clause (1) of Article 216 of the Constitution of Nepal, has enacted this Act. 1. Short Title and Commencement: (1) This Act may be cited as the "Act Relating to Remuneration, Facilities and Other Conditions of Service of the Chief Justice and Judges of the Supreme Court, 2074 (2017)."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Judge" means a Judge of the Supreme Court.

(b) "Chief Justice" means the Chief Justice of Nepal, and the said term also denotes the Acting Chief Justice.

(c) "Supreme Court" means the Supreme Court established pursuant to Article 128 of the Constitution.

(d) "Constitution" means the Constitution of Nepal. 3. Remuneration: (1) The Chief Justice and Judges shall receive the remuneration and allowances as mentioned in Schedule-1.

(2) If the Chief Justice or a Judge is retired from office in any circumstance other than the situation referred to in clause (2) of Article 101 of the Constitution, he/she shall be given an amount equal to one month's remuneration as an additional facility. 4. Provident Fund: Ten percent of the monthly remuneration of the Chief Justice and Judges shall be deducted, and the Government of Nepal shall add an equal amount (one hundred percent) to such deducted amount and deposit it in the Employees' Provident Fund. 5.

Residence Facility: (1) The Government of Nepal shall arrange a government house for the residence of the Chief Justice and Judges. (2) The repair and maintenance of the house pursuant to sub-section (1) shall be carried out by the Government of Nepal. (3) If a government house cannot be arranged pursuant to

sub-section (1), the Government of Nepal shall provide a suitable house on rent, including a guard house and private secretariat, for the Chief Justice. (4) A Judge who does not have his/her own house in the Kathmandu Valley shall be given an amount as mentioned in Schedule-1 in lieu of residence facility. (5) The Government of Nepal shall arrange suitable furniture for the residence arranged pursuant to sub-section (1) or (3) and for the private secretariat of the Chief Justice. (6) A Judge residing in his/her own house shall be given an amount as mentioned in Schedule-1 for repair and maintenance. (7) A Judge residing in a rented house shall be given, once a year, an amount equal to half of his/her monthly remuneration drawn for repair and maintenance. (8) The facility receivable pursuant to this section shall be provided to the Chief Justice and Judge for a period of seven days from the date of expiry of his/her term of office. 6. Electricity, Water and Telephone Facility: (1) The Government of Nepal shall bear the cost of installing electricity, water supply, internet and one telephone line at the residence of the Chief Justice, as well as the charges for such electricity, water, internet and telephone. (2) The Government of Nepal shall bear the cost of installing internet and one telephone line at the residence of a Judge, and an amount as mentioned in Schedule-1 shall be given in lieu of charges for electricity, water, telephone and internet installed at such residence. (3) The facility in lieu of charges pursuant to sub-section (2) shall also be receivable by a Judge residing in his/her own house. 7.

Vehicle and Fuel Facility: (1) The Chief Justice and Judges shall be provided with one government vehicle for transportation and fuel and lubricant as mentioned in Schedule-1. (2) Regular repair, maintenance and servicing of the government vehicle provided pursuant to sub-section (1) shall be arranged. (3) No bill or receipt need be submitted for the vehicle fuel and lubricant provided pursuant to sub-section (1). (4) The vehicle provided to the Chief Justice and Judge pursuant to sub-section (1) shall be used until the retirement of the Chief Justice or Judge, provided that the period from the date of purchase of such vehicle shall not exceed twelve years. (5) The facility pursuant to sub-section (1) shall be provided to the Chief Justice and Judge for a period of seven days from the date of expiry of his/her term of office. (6) If the Chief Justice or Judge who is using the vehicle pursuant to sub-section (4) wishes to purchase and take the vehicle upon retirement, the vehicle shall be transferred to him/her upon taking the book value of such vehicle. (7) While determining the book value of the vehicle pursuant to sub-section (6), the value shall not be less than ten percent of the purchase price of such vehicle. (8) The Chief Justice or Judge wishing to purchase and take the vehicle being used by him/her pursuant to sub-section (6) upon retirement shall give written notice thereof to the Supreme Court at least six months prior to the date of retirement. Provided that, if the period remaining for the retirement of the Chief Justice or Judge serving at the commencement of this Act is less than six months, there shall be no bar to giving such notice prior to retirement. 8.

Daily and Travel Expenses: (1) When the Chief Justice or Judge travels within Nepal on official business, he/she shall receive daily and travel expenses in accordance with the prevailing law relating to travel expenses. (2) When the Chief Justice or Judge travels to a foreign country on official business upon the invitation of a foreign country, the United Nations or its specialized agency, or the South Asian Association for Regional Cooperation (SAARC), or pursuant to a decision of the Government of Nepal, if he/she has to make his/her own arrangements for food and accommodation, he/she shall receive daily and travel expenses in accordance with the prevailing law relating to travel expenses. (3) When the Chief Justice or Judge travels as a guest of a foreign country or organization upon the invitation of a foreign country, the United Nations or its specialized agency, or the South Asian Association for Regional Cooperation (SAARC), and only accommodation is arranged, he/she shall receive, for the period of stay in such country, an amount equal to half of the amount receivable pursuant to sub-section (2) as daily and travel allowance. (4) When the Chief Justice or Judge goes on a foreign trip pursuant to sub-section (2) or (3), if the host organization or the

concerned foreign country provides hospitality by arranging food and accommodation but does not provide pocket expenses, he/she shall receive only one-fourth of the amount receivable pursuant to sub-section (2) as pocket expenses. (5) Notwithstanding anything contained in sub-sections (2), (3) and (4), if the host organization or the concerned foreign country provides daily and travel allowance during a foreign trip, the daily and travel allowance or pocket expenses pursuant to this section shall not be provided. (6) The Chief Justice and Judges who have not had the opportunity for a foreign trip even once in two years shall, upon the recommendation of the Supreme Court, be arranged by the Government of Nepal for a foreign trip for purposes related to judicial administration, and the expenses required for this purpose shall be provided by the Government of Nepal. (7) Notwithstanding anything contained elsewhere in this Act, the Chief Justice and Judge shall not make a foreign trip upon the invitation of a domestic or foreign non-governmental organization. 9. Clothing Allowance: The Chief Justice or Judge shall be given an amount as mentioned in Schedule-1 as clothing allowance at the end of the month of Chaitra each year. 10.

Leader's Allowance: When the Chief Justice and Judge travels to a foreign country as the leader of a delegation representing Nepal, he/she shall receive an additional fifty percent of the daily allowance receivable by him/her as leader's allowance. 11. Arrangement of Security and Driver: (1) The Government of Nepal shall arrange security personnel as mentioned in Schedule-2 for the security of the Chief Justice and Judges. (2) The Government of Nepal shall arrange drivers as mentioned in Schedule-2 for driving the vehicles of the Chief Justice and Judges. 12. Contingent Expenses: (1) When the Chief Justice or Judge travels within Nepal on work related to his/her office, he/she shall receive, up to a maximum of two times a year, an amount as mentioned in Schedule-1 as contingent expenses for each time. (2) When the Chief Justice or Judge goes outside Nepal to participate in international conferences, seminars, etc., upon the invitation of a foreign country, the United Nations or its specialized agency, or the South Asian Association for Regional Cooperation (SAARC), or pursuant to a decision of the Government of Nepal, he/she shall receive contingent expenses as determined by the Government of Nepal. (3) No bill or receipt need be submitted for expenses pursuant to sub-sections (1) and (2). 13. Arrangement of Private Secretariat and Staff: (1) The Chief Justice shall receive staff facilities as mentioned in Schedule-2 for the private secretariat at his/her residence for the duration of his/her term. (2) The Chief Justice shall be provided with goods as mentioned in Schedule-2 for his/her private secretariat, and the goods so provided shall be returned by the Chief Justice to the Supreme Court within one week after the expiry of his/her term. (3) For the private secretariat, an amount as mentioned in Schedule-2 shall be provided to the Chief Justice for stationery and hospitality. 14. Permission to Recruit an Attendant: A Judge may, for the duration of his/her tenure in office, recruit one office attendant of the first level without rank for work at the residence, and the Government of Nepal shall bear the remuneration of such attendant. 15.

Pension and Gratuity: (1) After being appointed to the office of Chief Justice or Judge and retiring from such office, he/she shall receive pension as follows:- (a) A Chief Justice or Judge who has served in the office of Chief Justice or Judge, or in both offices, for a period of five years or more but less than seven years shall receive a monthly pension of fifty percent of his/her monthly remuneration, and a Chief Justice or Judge who has served for a period of seven years or more shall receive a monthly pension of sixty-six percent of his/her monthly remuneration. (b) For a Chief Justice or Judge who has served in the office of Chief Justice or Judge, or in both offices, for more than seven years, for each additional year of service so rendered, an amount at the rate of two percent of the monthly remuneration drawn at the time of retirement shall be added to the monthly pension amount determined pursuant to clause (a), and pension shall be given accordingly.

Provided that the monthly pension amount receivable by a Chief Justice or Judge shall not exceed eighty

percent of the monthly remuneration drawn at the time of retirement.

(2) If a person who is serving or has served as a Chief Justice or Judge of a High Court or Court of Appeal, or as a Chief Justice, Judge or Additional Judge of a former Zonal Court, or is serving or has served in the service of the Government of Nepal, is appointed to the office of Judge of the Supreme Court and retires from service, and if the service period so rendered earlier, calculated pursuant to sub-section (7), together with the service period worked in the office of Chief Justice or Judge of the Supreme Court or both, totals twenty years or more, then such person may choose either the monthly pension pursuant to clause (a) of sub-section (1) or the monthly pension calculated as follows:

Total Service Period X Monthly Remuneration  
50

Explanation: For the purposes of this sub-section, "person who is serving or has served in the service of the Government of Nepal" means a person who, in accordance with law, has been appointed to and worked in any position in the Government of Nepal or an institution owned by the Government of Nepal, from which pension may be receivable.

(3) A Chief Justice or Judge who retires without completing a service period of five years in the office of Chief Justice or Judge, or in both, shall receive a gratuity in a lump sum amount equal to the product obtained by multiplying the total years of service rendered by him/her by the amount of one and a half months' remuneration drawn at the time of retirement. Provided that a person who has retired from any other service and is already receiving a pension from a government fund shall not receive a gratuity for the service rendered in the office of Chief Justice or Judge.

(4) If a person receiving pension is appointed to the office of Chief Justice or Judge and is also entitled to receive pension under this Act, he/she may choose either the pension previously received or the pension receivable under this Act.

(5) Notwithstanding anything contained in the above sub-sections, a Chief Justice or Judge removed from office pursuant to clauses (c) and (e) of Article 131 of the Constitution shall not receive pension or gratuity under this Act.

(6) When the remuneration of the Chief Justice or Judge is increased, the pension amount of the Chief Justice or Judge receiving pension shall also be increased at the rate of sixty-six percent of the percentage by which the remuneration amount is increased.

Provided that, if, during such increase in the pension amount, it becomes less than half of the remuneration receivable by the Chief Justice or Judge, the pension shall be increased so as to make it half.

(7) For the purpose of calculating the period for pension under sub-sections (1) and (2) and gratuity under sub-section (3), in the period worked in the office of Chief Justice or Judge, or both, the period worked in the office of ad hoc or additional Judge of the Supreme Court, or as Chief Justice, Judge or Additional Judge of a High Court or former Court of Appeal or Zonal Court, shall be added in full, and half of the total period worked in the service of the Government of Nepal shall be added for calculation. Provided that, if any person who has already received a gratuity is appointed to the office of Chief Justice or Judge, the service period previously rendered by him/her shall be added under this sub-section only if he/she repays the full amount of the gratuity previously received within one year of such appointment.

16. Family Pension and Gratuity: (1) In the following circumstances and for the following periods, the pension payable under section 15 shall be given to a person

chosen by the Chief Justice or Judge from amongst the members of his/her family, and if such chosen person also dies, or if no such choice is made, to the nearest entitled person amongst the members of his/her family:-

(a) If the Chief Justice or Judge dies while holding office, for a period of seven years from the date of death,

(b) If death occurs before the expiry of seven years from the commencement of receiving pension under section 15, for the remaining period up to such seven years.

(2) If, upon the death of a Chief Justice or Judge while holding office, he/she is not entitled to pension but only to gratuity under section 15, the gratuity amount shall be received by the person referred to in sub-section (1) from amongst the members of his/her family.

(3) After the period for receiving family pension pursuant to sub-section (1) has been paid, the widow or widower of the Chief Justice or Judge shall be entitled to receive half of such pension for life. Provided that the person receiving pension shall not receive double pension. 17.

Disability Pension: (1) If, due to an accident in the course of official work, the Chief Justice or Judge becomes physically disabled or incapacitated from performing the work of his/her office due to injury, such Chief Justice or Judge shall receive, for life, in addition to the pension as set forth in sub-section (2), a disability pension as set forth in sub-section (5). (2) If the Chief Justice or Judge who has become disabled under sub-section (1) has completed the service period entitling him/her to receive pension under section 15, he/she shall receive pension accordingly, and if not, the pension amount shall be calculated by deducting proportionately for the period required to complete such period. Provided that, in making such deduction, no more than one-third of the minimum pension receivable if the service period for pension were completed shall be deducted. (3) The Chief Justice or Judge who has become disabled under sub-section (1) may be given a lump sum amount of up to ten thousand rupees as financial assistance, depending on the circumstances. (4) The Chief Justice or Judge shall receive one hundred percent of the treatment expenses incurred for the treatment of injury sustained under sub-section (1). (5) In addition to the pension receivable under sub-section (2), the Chief Justice or Judge who has become disabled due to injury under sub-section (1) shall receive an amount equal to twenty percent of his/her monthly remuneration drawn as disability pension. Provided that, if the Chief Justice or Judge receiving disability pension becomes capable of handling his/her responsibilities, he/she shall not receive the disability pension under this sub-section. (6) If the Chief Justice or Judge receiving disability pension dies within seven years from the date of commencement of receiving such disability pension, the disability pension amount receivable for the remaining period to complete such seven years shall be given as a lump sum gratuity to the person specified in sub-section (1) of section 16. 18.

Facility for Disability Sustained: (1) If, due to injury sustained in the course of official work, the Chief Justice or Judge does not have to retire from service but his/her capability is impaired due to such injury, such Chief Justice or Judge may be given a lump sum amount of up to ten thousand rupees as financial assistance, considering the severity of the injury sustained. (2) The Chief Justice or Judge shall receive additional sick leave with full pay for the entire period required for treatment of the injury under sub-section (1), without deducting leave from any accumulated leave. (3) The Chief Justice or Judge shall receive one hundred percent of the treatment expenses incurred during treatment under sub-section (2), and the expenses incurred in such treatment shall not be deducted from the treatment expenses receivable by him/her under section 31. (4) A Chief Justice or Judge who has become disabled due to injury caused by his/her own intentional gross negligence shall not receive the facility under this Act. 19. Extraordinary Family Pension and Gratuity: (1) If the Chief Justice or Judge dies immediately due to an accident in the course of official work, or

dies later without recovering from the consequences thereof, his/her widow or widower shall be given a separate lifelong monthly family pension and, in addition, a lump sum gratuity as follows:- Monthly Rate of Family Pension Lump Sum Gratuity (a) Chief Justice Four hundred and fifty rupees Ten thousand rupees (b) Judge Three hundred and fifty rupees Eight thousand seven hundred rupees (2) For the purpose of providing lifelong monthly family pension and additional gratuity under sub-section (1), the widow or widower of the Chief Justice or Judge shall be recognized only in the following circumstances:- (a) Marital relationship with the Chief Justice or Judge must have been established prior to his/her death, (b) The widow or widower must have been living together in a joint family with the Chief Justice or Judge at the time of his/her death. (3) If there is no widow, or if she was separated from the husband before his death, or if the widow has remarried, the lump sum gratuity as specified in sub-section (1) may be given proportionately in a lump sum to the children born from the widow.

Provided that, if there are children below the age of eighteen years, a family pension may also be provided at a reasonable rate, not exceeding two-thirds of the amount of family pension receivable by the widow, for such period as the Government of Nepal deems appropriate for their maintenance.

(4) If the deceased Chief Justice or Judge has no widow, widower or children, and there is a dependent mother, father, or both or one of the parents-in-law, a family pension may be provided at a reasonable rate, not exceeding two-thirds of the amount of family pension receivable by the widow or widower, for such period as the Government of Nepal deems appropriate for their maintenance.

(5) If the deceased Chief Justice or Judge has no widow, widower, children, mother, father or parents-in-law, and there is any dependent brother or unmarried sister, a family pension may be provided proportionately at a reasonable amount, not exceeding two-thirds of the amount of family pension receivable by the widow or widower, for such period as the Government of Nepal deems appropriate for their maintenance. 20. Educational Allowance or Child Pension: (1) If the Chief Justice or Judge dies due to an accident in the course of official work, or becomes permanently incapacitated for work due to the same cause, each child of such deceased or disabled Chief Justice or Judge shall be given an annual educational allowance at the rate of nine hundred rupees until attaining the age of eighteen years. Explanation: For the purposes of this section, "child" means the sons and daughters of the deceased or disabled Chief Justice or Judge.

(2) Each child of the Chief Justice or Judge who died in the course of official work and whose both mother and father are not alive shall, in addition to the educational allowance under sub-section (1), be given a child pension at the rate of seventy-five rupees per month.

(3) The pension under sub-section (2) shall be receivable until the date on which the concerned child attains the age of twenty-one years or enters government service, whichever occurs earlier.

(4) In relation to the pension or gratuity receivable by the Chief Justice or Judge, his/her family or children in case of death in the course of official work or permanent disability, the Judicial Council shall make a recommendation to the Government of Nepal. 21. Leave: The Chief Justice or Judge shall receive the following types of leave:-

- (a) Casual leave,
- (b) Festival leave,
- (c) Home leave,
- (d) Sick leave,

- (e) Maternity leave,
- (f) Paternity leave,
- (g) Bereavement leave,
- (h) Special leave. 22.

Casual and Festival Leave: (1) The Chief Justice or Judge may take six days of casual leave with full pay and six days of festival leave each year. (2) Casual and festival leave of one year shall not be accumulated to the next year. (3) Casual and festival leave may also be taken for half a day. 23. Home Leave: (1) The Chief Justice or Judge shall receive home leave with full pay at the rate of one day for every eleven days of the period worked. Explanation: For the purposes of this section, "period worked" also includes days spent on casual leave and festival leave, as well as public holidays. (2) Home leave under sub-section (1) may be accumulated up to a maximum of one hundred and fifty days. (3) A Chief Justice or Judge who has accumulated home leave exceeding one hundred and twenty days may, out of such excess leave, receive in a lump sum, up to a maximum of thirty days of the home leave accumulated up to the end of Chaitra each year, an amount calculated at the rate of the remuneration drawn by him/her, by the end of the same fiscal year. (4) Even if a Judge is separated from service for any reason, he/she may receive in a lump sum, out of the home leave accumulated under sub-section (2), an amount calculated at the rate of the remuneration drawn by him/her for a maximum of one hundred and twenty days of home leave. (5) When the Chief Justice or Judge goes home on home leave and returns to the Supreme Court from home after the home leave is paid, he/she shall receive travel time once a year at the rate of one day for every eight kos of the walking route, and for the route by motor, train, or airplane, the actual number of days required. (6) If the Chief Justice or Judge dies before receiving the accumulated home leave under sub-section (2) or the amount in lieu thereof, such amount shall be received in a lump sum by the person referred to in sub-section (1) of section 16. (7) If any public holiday falls during the period of home leave taken by the Chief Justice or Judge under this section, such public holiday shall not be added to the home leave. 24.

Sick Leave: (1) The Chief Justice or Judge shall receive fifteen days of sick leave with pay each year. (2) Sick leave under sub-section (1) may be accumulated. (3) In lieu of sick leave accumulated under sub-section (2), the Chief Justice or Judge shall, at the time of retirement from service, receive in a lump sum an amount calculated on the basis of the monthly remuneration drawn by him/her. (4) If the Chief Justice or Judge suffers from a serious and severe illness and submits a certificate from an approved physician, even if no sick leave remains, he/she may receive additional sick leave with pay for up to two months, and after such additional sick leave with pay has been exhausted, he/she may receive sick leave without pay for up to a further four months at a time, not exceeding a total of twelve months during the entire service period. Provided that, when taking such additional sick leave with pay, one day of home leave shall be deducted for every two days of additional sick leave. (5) If the Chief Justice or Judge dies before receiving accumulated sick leave or the amount in lieu thereof, such amount shall be received in a lump sum by the person referred to in sub-section (1) of section 16. 25. Maternity Leave: (1) If the Chief Justice or Judge becomes pregnant, she may take maternity leave for a total of ninety-eight days before and after childbirth. (2) The Chief Justice or Judge who has taken maternity leave under sub-section (1) may, if she wishes, take additional maternity leave without pay for up to six months, without deducting from any other leave. (3) The leave under sub-sections (1) and (2) shall be taken consecutively. (4) The period spent on leave without pay under sub-section (2) shall be added to the service period. (5) While on maternity leave under sub-section (1), the Chief Justice or Judge shall receive full remuneration. (6) The Supreme Court shall maintain a record of

maternity leave taken and inform the Judicial Council thereof. 26.

**Paternity Leave:** (1) If the spouse of the Chief Justice or Judge is about to give birth, such Chief Justice or Judge may take paternity leave for a total of fifteen days before or after childbirth. (2) The Chief Justice or Judge on paternity leave shall receive full pay. (3) Paternity leave shall be granted only twice during the entire service period. (4) The Chief Justice or Judge who has taken paternity leave shall submit the birth registration certificate of the child to the Supreme Court within three months from the date of taking leave. (5) The period of such leave of a Chief Justice or Judge who fails to submit such certificate within the period under sub-section (4) shall be deducted from other leave receivable by him/her. (6) The Supreme Court shall maintain an updated record of paternity leave and inform the Judicial Council thereof. 27. **Bereavement Leave:** If the Chief Justice or Judge himself/herself has to observe mourning, he/she shall receive bereavement leave with pay for a maximum of fifteen days according to his/her religion, culture and customs. 28. **Special Leave:** (1) The Chief Justice or Judge may receive special leave in special circumstances as follows:- (a) Not exceeding one month at a time, and (b) Not exceeding a total of three months during the entire service period. (2) During the period spent on special leave under sub-section (1), the Chief Justice or Judge shall receive half remuneration. 29. **Accumulated Leave from Other Service:** If a person who is serving as a Judge of a High Court or in the permanent service of the Government of Nepal is appointed to the office of Chief Justice or Judge, the home leave or sick leave accumulated by him/her while serving in such office or service shall be treated as if accumulated under this Act. 30. **Approval of Leave:** (1) The Chief Justice may take casual leave and festival leave by himself/herself, and for other leave, he/she must obtain the approval of the President. (2) A Judge must get all leaves approved by the Chief Justice. (3) The Supreme Court shall maintain a record of leave taken by the Chief Justice and Judge under sub-section (1) or (2). 31.

**Treatment Expenses:** (1) If the Chief Justice or Judge falls ill and undergoes treatment after diagnosis of the disease based on a physician's prescription, he/she shall receive the following expenses as treatment expenses:- (a) Expenses according to the hospital bill incurred when admitted to hospital and undergoing treatment in hospital, and expenses for medicines purchased according to the prescription of the hospital physician, (b) Fees charged by any physician, Kaviraj or Vaidya for examination, and expenses for medicines purchased according to the prescription given upon examination, in cases where hospital admission is not required or cannot be done, or even after being admitted to and discharged from hospital, for the treatment of the disease, (c) Expenses according to the bill incurred for all types of surgical operations except plastic surgery, (d) Expenses according to the bill incurred, up to the limit specified by the Government of Nepal by order from time to time, for equipment such as spectacles, dental appliances, hearing aids, etc., (e) When going outside the Kathmandu Valley or to a foreign country for medical treatment, the full amount of transportation expenses for the patient and, if an attendant is required, for one attendant, up to and back from such place, and an amount equal to seventy-five percent of the daily allowance receivable by him/her as food expenses. (2) Notwithstanding anything contained in sub-section (1), treatment expenses shall not be given if the expenses incurred at one time are less than five hundred rupees, and the total treatment expenses receivable by the Chief Justice or Judge during the entire service period shall not exceed the amount of twelve months' remuneration of the Chief Justice or Judge. (3) If a Medical Board formed by the Government of Nepal recommends treatment for the Chief Justice or Judge within the country, or recommends treatment abroad if treatment is not possible within the country, the Government of Nepal may provide additional financial assistance in an amount deemed appropriate, in addition to the treatment expenses receivable under sub-section (1). (4) If the Chief Justice or Judge dies before receiving the treatment expenses receivable under this section, such amount may be received by the person referred to in sub-section (1) of section 16. (5) If the Chief Justice or Judge wishes to receive treatment expenses receivable under this Act



as an advance, an advance may be given subject to sub-section (2), with the condition of settling accounts later, and if, upon subsequent accounting, the amount taken as advance exceeds the amount receivable for treatment, the excess amount shall be deducted in installments from the remuneration of the Chief Justice or Judge.

Provided that, if the Chief Justice or Judge dies before the amount to be so deducted is fully recovered, the remaining amount to be deducted shall be waived.

(6) If the spouse, mother, father, mother-in-law, father-in-law, or minor son or daughter of the Chief Justice or Judge living in a joint family falls ill, the Chief Justice or Judge may receive ninety percent of the treatment expenses incurred according to the bill, up to half of the maximum treatment expenses amount receivable under sub-section (2), such amount being deductible from the said maximum amount.

(7) When claiming treatment expenses under sub-section (6), a physician's prescription mentioning the diagnosis of the disease must be submitted.

(8) If the spouse, mother, father, mother-in-law, father-in-law, or minor son or daughter of the Chief Justice or Judge living in a joint family falls ill and requires treatment abroad, or requires hospitalization and surgery or treatment within the country, ninety percent of the expenses according to the hospital bill and expenses for medicine and treatment according to the hospital physician's prescription shall be receivable by the Chief Justice or Judge from the amount receivable by him/her under sub-section (2).

(9) Notwithstanding anything contained in sub-sections (6) and (8), if the spouse, mother, father, mother-in-law or father-in-law of the Chief Justice or Judge living in a joint family is a serving employee in any constitutional position, government service, or service of an institution owned or controlled by the government, such person shall not receive treatment expenses. Explanation: For the purposes of this section, "constitutional position" means the position of the head or office-bearer of a constitutional body.

(10) If, upon retirement of the Chief Justice or Judge, having taken or not taken some of the treatment expenses receivable during the entire service period under sub-section (2), any treatment expenses remain, the Chief Justice or Judge may receive the remaining amount in a lump sum after retirement.

(11) Notwithstanding anything contained in sub-section (10), the Chief Justice or Judge who has already received treatment expenses for service in any constitutional position, as a Judge of a High Court or Court of Appeal, or government service, shall only receive the balance amount after deducting the treatment expenses previously received.

(12) A Chief Justice or Judge claiming treatment expenses under this section shall, if he/she falls ill to the extent of being unable to attend court, first claim sick leave as long as sick leave remains.

Provided that, if no sick leave remains, there shall be no bar to claiming other leave.

(13) Details of treatment expenses received by the Chief Justice or Judge under this section shall be recorded in the leave record and personal record of the Chief Justice or concerned Judge. 32. Festival Expenses: (1) The Chief Justice and Judge shall receive an amount equal to one month's remuneration drawn by him/her each year as festival expenses for festivals celebrated according to his/her religion, culture and tradition.

(2) The amount under sub-section (1) may be received by the Chief Justice and Judge once in a fiscal year on the occasion of the main festival celebrated according to his/her religion, culture and tradition. 33. Facility

of Acting Chief Justice: The Acting Chief Justice shall receive the remuneration and facilities of the Chief Justice. Provided that the Acting Chief Justice shall not receive the pension and family pension receivable by the Chief Justice under this Act. 34. Additional Facility: (1) The Chief Justice or Judge who has spent three years without taking any leave other than casual leave, festival leave and sick leave shall, when going to and returning from his/her home on home leave accumulated by him/her, receive daily and travel allowance at half the rate of the daily and travel allowance receivable by him/her under this Act. Provided that the family members of the Chief Justice or Judge shall not receive daily and travel allowance under this sub-section.

(2) If the Chief Justice or Judge dies while holding office, the arrears of salary and the amount under sub-section (1) shall be received by the member of his/her family who is to receive pension or gratuity. 35. Review of Remuneration and Facilities: The Government of Nepal shall, in consultation with the Supreme Court, review the remuneration of the Chief Justice and Judges every three years. 36. Amendment of Schedule: The Government of Nepal may, by notification published in the Nepal Gazette, amend the Schedule. 37. Repeal and Saving: (1) The Supreme Court Judges' Remuneration, Conditions of Service and Facilities Act, 2026 (1969) is hereby repealed.

(2) All acts and proceedings done under the Supreme Court Judges' Remuneration, Conditions of Service and Facilities Act, 2026 (1969) shall be deemed to have been done under this Act. Schedule-1  
(Relating to sub-section (1) of section 3, sub-sections (4) and (6) of section 5, sub-section (2) of section 6, sub-section (1) of section 7, section 9, sub-section (1) of section 12)

Remuneration and Other Facilities of the Chief Justice and Judges

S.No.